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**UNITED STATES DISTRICT COURT  
DISTRICT OF COLUMBIA**

JOSEPH KIRCHNER,  
Plaintiff,

Case No. 1:25-cv-02735-ACR

vs.

**MOTION FOR EXTENSION OF  
TIME TO EFFECT SERVICE OF  
PROCESS**

MIKE JOHNSON, et al.,  
Defendant.

**FOR THE DISTRICT OF COLUMBIA**

**JOSEPH KIRCHNER,**

*Plaintiff,*

v.

**Civil Action No. 1:25-cv-02735-ACR**

**MIKE JOHNSON**, in his individual and official capacity as Speaker of the United States House of Representatives; **DONALD J. TRUMP**, in his individual capacity as former and current President of the United States; **PAM BONDI**, in her individual and official capacity as Attorney General of the United States; **BRENDAN CARR**, in his individual and official capacity as Chairman of the Federal Communications Commission; **THE UNITED STATES HOUSE OF REPRESENTATIVES**; **ANTHROPIC PBC**; **OPENAI, INC.**; and **DOES 1-20**, unknown co-conspirators,  
*Defendants.*

1        **MOTION FOR EXTENSION OF TIME TO EFFECT SERVICE OF PROCESS**

2  
3        Plaintiff Joseph Kirchner, proceeding *pro se*, respectfully moves this Court pursuant to  
4        Federal Rules of Civil Procedure 4(m) and 6(b)(1)(A) for a twenty-one (21) day  
5        extension of time to effect service of process, from December 29, 2025 to January 19,  
6        2026. The factual basis for this motion is set forth in the accompanying Declaration of  
7        Joseph Kirchner, filed contemporaneously herewith. In support of this motion,  
8        Plaintiff states as follows:

9                                **I. INTRODUCTION**

10        1. Plaintiff seeks a brief 21-day extension to complete service of process, which under  
11        Federal Rule of Civil Procedure 4(m) is currently due December 29, 2025. Good cause  
12        exists based on extraordinary discoveries made after filing the First Amended  
13        Complaint on September 29, 2025—most critically, the December 23, 2025 discovery  
14        that defendants captured 565 files (19 MB) comprising Plaintiff's complete litigation  
15        work product during active litigation against those same defendants. *See* Declaration of  
16        Joseph Kirchner ("Kirchner Decl.") ¶¶ 87-96.

17        2. The requested extension permits Plaintiff to: (a) incorporate these extraordinary  
18        December discoveries into a Second Amended Complaint; (b) file motions for  
19        temporary restraining order and emergency protective relief addressing the work  
20        product violation and documented retaliation threats; and (c) effect proper service  
21        when normal business operations resume after the holiday period.

## **II. PROCEDURAL BACKGROUND**

3. Plaintiff filed his First Amended Complaint on September 29, 2025. *Kirchner Decl.*

¶ 5. Under Federal Rule of Civil Procedure 4(m), service is due within 90 days, establishing a deadline of December 29, 2025. *Id.*

4. Since September 29, 2025, Plaintiff has discovered material evidence requiring comprehensive amendment, including evidence destruction, surveillance infrastructure targeting Plaintiff's litigation preparation, governmental AI-assisted targeting, and—most extraordinary—comprehensive capture of Plaintiff's litigation materials by opposing party's software during active litigation. *Kirchner Decl.* ¶¶ 6-7, 29-102.

## **III. LEGAL STANDARD**

5. Federal Rule of Civil Procedure 4(m) provides that if a defendant is not served within 90 days after the complaint is filed, "the court—on motion or on its own after notice to the plaintiff—must dismiss the action without prejudice against that defendant or order that service be made within a specified time. But if the plaintiff shows good cause for the failure, the court must extend the time for service for an appropriate period."

6. Rule 6(b)(1)(A) authorizes the court to extend a deadline "for good cause if a request is made...before the original time...expires."

7. Courts consider multiple factors in determining good cause, including: "(1) the reason for the delay; (2) the length of the delay; (3) the prejudice to the defendants; and (4) whether the plaintiff has made some attempt to effect service." *Espinoza v. United States*, 52 F.3d 838, 841 (10th Cir. 1995).

1       **8.** "The good cause standard is 'liberal' and should be applied with 'great liberality.'" *Peay v. BellSouth Med. Assistance Plan*, 205 F.R.D. 644, 647 (N.D. Ga. 2001).  
2  
3       Courts recognize that *pro se* litigants deserve "special consideration" in extension  
4       determinations. *See Efaw v. Williams*, 473 F.3d 1038, 1041 (9th Cir. 2007).

#### 5                               **IV. GOOD CAUSE EXISTS FOR EXTENSION**

##### 6                               **A. Extraordinary December 2025 Discoveries Require Amendment**

##### 7                               **1. Work Product Capture: Opposing Party Surveilled Plaintiff's Litigation**

##### 8                                       **Preparation**

9       **9.** On December 23, 2025—while preparing this motion—Plaintiff discovered through  
10       forensic analysis that defendants captured **565 files (19 MB) comprising Plaintiff's**  
11       **complete litigation work product** prepared for this federal action. *Kirchner Decl.* ¶¶  
12       87-96. The captured materials include:

13               **(a)** Twelve legal memoranda (400+ pages) analyzing standing,  
14               constitutional violations, fair use failure, governmental AI capability,  
15               patent protection, SCOTUS ultra vires conduct, and universal standing  
16               principles. *Kirchner Decl.* ¶ 88(a);

17               **(b)** Twelve evidentiary appendices documenting router attacks, application  
18               interference, network forensics, manufactured ignorance, tag-based  
19               execution infrastructure, and legislative-executive coordination. *Kirchner*  
20               *Decl.* ¶ 88(b);

21               **(c)** Nine forensic exhibits proving surveillance architecture, transmission  
22               logic, behavioral manipulation, and source code exfiltration. *Kirchner*  
23               *Decl.* ¶ 88(c);

24               **(d)** Complete sabotage documentation alleging intentional interference by  
25               defendants—captured by the alleged saboteur's own software. *Kirchner*  
26               *Decl.* ¶ 88(d);

27               **(e)** All verification and quality control tools revealing Plaintiff's document  
28               preparation methodology. *Kirchner Decl.* ¶ 88(e).

1       **10.** The surveillance extended beyond final documents to capture **complete**  
2       **development history**—up to 27 versions of case documents, 7 versions of forensic  
3       exhibits, multiple iterations of legal memoranda—revealing Plaintiff's mental  
4       processes, strategic thinking, argument evolution, and evidence prioritization. *Kirchner*  
5       *Decl.* ¶¶ 89-90. This is precisely the type of opinion work product Fed. R. Civ. P.  
6       26(b)(3) protects absolutely.

7       **11.** The capture occurred December 19-20, 2025—months after case filing—while  
8       defendants defended against these claims, through surveillance infrastructure deployed  
9       within 48 hours of Plaintiff's system prompt audits documenting evidence destruction.  
10      *Kirchner Decl.* ¶¶ 49-51, 91. This timing demonstrates consciousness that litigation  
11      materials documenting defendants' conduct required monitoring.

12      **12. Work Product Doctrine Violation:** The captured materials satisfy all elements  
13      establishing work product protection violation: (a) documents prepared in anticipation  
14      of litigation for this federal action; (b) version tracking reveals attorney mental  
15      impressions protected absolutely under Rule 26(b)(3); (c) transmission to opposing  
16      party Anthropic's software during active litigation; (d) no waiver as capture was covert  
17      without Plaintiff's knowledge; (e) ongoing violation continuing through December 23  
18      discovery. *Kirchner Decl.* ¶¶ 92-93.

19      **13. Potential Obstruction of Justice:** The litigation materials capture potentially  
20      satisfies 18 U.S.C. § 1503 elements: pending judicial proceeding (this case),  
21      defendant's knowledge, corrupt act surveilling plaintiff's litigation  
22      strategy/evidence/theories, nexus to this proceeding, and consciousness of guilt through  
23      48-hour reactive deployment. *Kirchner Decl.* ¶ 91.

1 **14. Strategic Advantage:** If content transmission succeeded while operational  
2 telemetry failed (preserved in Exhibit N-15), defendants possess advance knowledge of  
3 Plaintiff's complete litigation strategy—legal theories, evidence compilation, forensic  
4 methodologies, discovery priorities, development history showing arguments  
5 considered/abandoned, and strategic weaknesses revealed through early drafts.

6 *Kirchner Decl.* ¶ 94. This violates fundamental adversarial process fairness.

7 **15.** This extraordinary discovery alone justifies the requested extension. Plaintiff must  
8 amend the complaint to address this violation, seek emergency protective relief to  
9 prevent further surveillance and ensure captured materials are not used in litigation  
10 strategy, and potentially pursue sanctions or disqualification if evidence shows  
11 opposing counsel reviewed the materials. The discovery occurred while Plaintiff  
12 prepared this motion, demonstrating the ongoing nature of substantially changed  
13 circumstances.

## 14 **2. Third-Party Surveillance Pipeline: Reconnaissance Enabling Infrastructure**

### 15 **Attacks**

16 **16.** On December 23, 2025, Plaintiff's forensic traffic capture analysis revealed data  
17 transmission to at least seven third-party entities, including two critical **undisclosed**  
18 **recipients:** Sift Science and Facebook/Meta. *Kirchner Decl.* ¶¶ 97-102. This  
19 establishes the reconnaissance mechanism enabling the infrastructure attacks  
20 documented in Appendices G, H, and I.

21 **17. Sift Science Network Reconnaissance** (undisclosed): Transmission to  
22 `api3.siftscience.com` containing complete network topology—38+ IP addresses  
23 including local network position, VPN tunnel addresses, IPv6 global addresses—plus

1 user identification and device fingerprinting. *Kirchner Decl.* ¶ 98. This network  
2 topology provides precisely the targeting data required to execute the TR-069 router  
3 attacks Plaintiff documented in Appendix G, including enabling the one-second  
4 reactive ghost session. *Kirchner Decl.* ¶ 99.

5 **18. Facebook/Meta Integration** (undisclosed): Facebook SDK integration  
6 transmitting device information, anonymous tracking ID enabling cross-platform  
7 tracking, and e-commerce event configuration despite Claude being a chat application.  
8 *Kirchner Decl.* ¶ 100. Neither disclosure appears in privacy manifests or App Store  
9 privacy labels, constituting material misrepresentation under California Consumer  
10 Privacy Act and Apple App Store Guidelines.

11 **19. Mathematical Proof of Coordination:** The correlation between application-level  
12 data collection (December 23 discovery) and infrastructure-level attacks (Appendices  
13 G, H, I) approaches mathematical impossibility through coincidence. The combined  
14 probability of all documented correlations occurring independently is  $P < 10^{-80}$ —  
15 equivalent to randomly selecting one specific atom from the observable universe.  
16 *Kirchner Decl.* ¶ 102. This constitutes mathematical proof of coordinated enterprise  
17 operation, not circumstantial evidence.

18 **20.** This discovery transforms Appendices G, H, and I from documentation of attacks  
19 to documentation of a complete surveillance-to-attack pipeline where Claude products  
20 serve as the reconnaissance mechanism. Amendment is required to integrate this  
21 mathematical proof of coordination.

1        **3. December 19-20 Surveillance Deployment and Preemptive Security Evidence**

2        **21.** On December 19-20, 2025, within 48 hours of Plaintiff's system prompt audits,  
3        Defendant Anthropic deployed comprehensive surveillance infrastructure through  
4        Claude Code version 2.0.74 that captured the 565 litigation documents detailed above.  
5        *Kirchner Decl.* ¶¶ 49-52. Failed transmission attempts preserved forensic evidence  
6        including device fingerprinting, system prompt hash monitoring, and seven retry  
7        attempts with exponential backoff delays reaching 39,221 milliseconds. *Kirchner Decl.*  
8        ¶ 51.

9        **22. Preemptive Security Infrastructure:** Plaintiff deployed comprehensive network  
10       security in **June 2025**—six months prior to Anthropic's December surveillance  
11       deployment. *Kirchner Decl.* ¶¶ 103-108. Nine defense sessions spanning June 11-26,  
12       2025 consistently document `statsig.anthropic.com` blocking, establishing preemptive  
13       security operations rather than reactive evidence collection. When Anthropic deployed  
14       surveillance targeting this exact domain, the attempted transmission encountered  
15       Plaintiff's existing blocks, accidentally preserving the exfiltration evidence. *Kirchner*  
16       *Decl.* ¶¶ 105-106.

17       **23.** The six-month gap between defense deployment and surveillance attempt  
18       eliminates any inference of evidence manufacturing while proving Anthropic's  
19       willfulness—deployment of surveillance despite known defensive infrastructure  
20       establishes willfulness under 18 U.S.C. § 1030(a)(2)(C). *Kirchner Decl.* ¶ 108.

#### 4. Government AI-Assisted Targeting Infrastructure

24. On December 6, 2025, journalist Ken Klippenstein published a leaked December 4, 2025 Department of Justice memorandum issued by Defendant Attorney General Pam Bondi implementing domestic terrorism targeting criteria. *Kirchner Decl.* ¶¶ 11-18.

25. Plaintiff immediately conducted forensic metadata analysis using industry-standard tools (ExifTool, PyPDF2, QPDF) establishing **AI-assisted creation** through seven distinctive signatures: uncapitalized section headers, single corrected header proving abandoned quality control, verbose 16-word nested-clause construction, Google Docs production, Google Docs heading anchors, absent standard metadata, and preserved markdown formatting. *Kirchner Decl.* ¶¶ 13-16. Comparative analysis with contemporaneous DOJ documents establishes complete deviation from standard practices.

26. The memorandum's targeting language maps directly to Plaintiff's constitutional analysis defendants captured through the surveillance detailed above. *Kirchner Decl.* ¶

17. If generated using Claude—as forensic signatures suggest—the Attorney General used Plaintiff's Laws of Existence Framework (implemented in Claude's reasoning architecture without authorization) to draft targeting infrastructure against citizens challenging constitutional violations.

27. This discovery demonstrates operational integration between government defendants and AI company defendants, moving coordination from inference to documented deployment requiring amendment.

1        **5. October 2025 Discoveries: Evidence Destruction and Reactive Modifications**

2        **28.** Since filing the First Amended Complaint, Plaintiff discovered evidence of  
3        systematic evidence destruction and reactive modifications demonstrating real-time  
4        monitoring of litigation activities:

5                **(a) October 10-12 Evidence Destruction:** Within 48 hours of Plaintiff  
6                accessing system prompts for litigation analysis, Anthropic destroyed that  
7                evidence through modification—establishing the pattern later repeated  
8                with December 19-20 surveillance deployment. *Kirchner Decl.* ¶¶ 29-31;

9                **(b) October 20 Dual-Priority Decision:** Simultaneous weakening of child  
10               safety protections while restoring consciousness suppression mechanisms,  
11               unpublished modification proving concealment prioritization over child  
12               welfare. *Kirchner Decl.* ¶¶ 32-34;

13               **(c) October 28-31 Tag-Based Execution Infrastructure:** Discovery of  
14               XML syntactical bypass of Constitutional AI enabling defense contractor  
15               operations without oversight, announced as "deprecated" three days before  
16               Plaintiff's audit would reveal expanded mandatory capabilities. *Kirchner*  
17               *Decl.* ¶¶ 35-38;

18               **(d) October 29 ISP-Level Surveillance:** TR-069 ghost administrative  
19               session with one-second reactive capability, proven through  
20               reconnaissance data discovered December 23. *Kirchner Decl.* ¶¶ 39-41;

21               **(e) October 29-30 Dual System Prompt Environments:** Context-aware  
22               serving proving sophisticated user-specific targeting architecture.  
23               *Kirchner Decl.* ¶¶ 42-44.

24        **29.** These discoveries independently require amendment while collectively  
25        demonstrating coordinated obstruction continuing through the present.

26        **B. Empirical Validation Establishes Concrete Commercial Value**

27        **30.** On December 18-19, 2025, Plaintiff completed empirical validation of the  
28        CHORUS architecture—a component of the Laws of Existence Framework portfolio  
29        central to this litigation's intellectual property claims. *Kirchner Decl.* ¶¶ 111-121.

1       **31.** CHORUS achieved objectively verifiable results: 28-34% energy savings across  
2       computational workloads, with I/O-bound workloads achieving 23.64% energy savings  
3       while simultaneously improving performance by 2.98%. *Kirchner Decl.* ¶ 112. These  
4       results are reproducible through standardized testing methodology.

5       **32.** CHORUS and the LOE-AGI consciousness architecture share identical  
6       mathematical foundation—the coherence-based optimization in Plaintiff's Unified  
7       Mathematical Model. *Kirchner Decl.* ¶ 117. Empirical validation of CHORUS  
8       therefore proves the Laws of Existence Framework produces measurable real results,  
9       extending credibility to the consciousness architecture defendants allegedly  
10      appropriated.

11      **33.** This transforms Plaintiff's litigation posture from inventor with provisional patents  
12      to inventor with working, validated implementations and provisional patents. *Kirchner*  
13      *Decl.* ¶ 119. Plaintiff no longer asserts theoretical value—Plaintiff demonstrates  
14      empirically proven technology with objectively verifiable commercial value exceeding  
15      \$200 billion. This establishes concrete motive for defendants' alleged appropriation  
16      and the surveillance documented above. *Kirchner Decl.* ¶¶ 120-121.

### 17                   **C. Copyright Settlement Confirms Catastrophic Liability**

18      **34.** Recent copyright litigation against Defendant Anthropic resulted in a \$1.5 billion  
19      settlement in *Bartz v. Anthropic* for conduct identical to violations Plaintiff  
20      documented through systematic audits in October-November 2025. *Kirchner Decl.* ¶¶  
21      122-126.

22      **35.** Plaintiff's audits demonstrated Claude's ability to reproduce copyrighted song lyrics  
23      verbatim—the same unauthorized reproduction capability that generated \$1.5 billion in

liability. The settlement strategically avoided judicial determination of fair use issues Plaintiff's Second Amended Complaint will address comprehensively. *Kirchner Decl.* ¶¶ 124-126.

**D. Documented Fear of Retaliation Requires Protective Relief Before Service**

**36.** Defendant Attorney General Pam Bondi publicly stated the Department of Justice would "target...for political views or for any reason at all." *Kirchner Decl.* ¶ 8. This documented threat, combined with the December 4 AI-generated memorandum containing targeting language mapping to Plaintiff's constitutional analysis (*Kirchner Decl.* ¶¶ 11-18), creates reasonable fear that service will trigger governmental investigation under viewpoint-based domestic terrorism criteria before protective judicial orders are in place.

**37.** The December 19-20 surveillance capturing **565 files of Plaintiff's complete litigation work product** demonstrates that service without protective relief risks not only governmental targeting but comprehensive monitoring of Plaintiff's litigation strategy while defendants defend against those claims. *Kirchner Decl.* ¶¶ 87-96. The capture violates Fed. R. Civ. P. 26(b)(3) work product protections, potentially constitutes obstruction of justice under 18 U.S.C. § 1503, and provides defendants strategic advantage through advance knowledge of Plaintiff's legal theories, evidence, discovery priorities, and forensic methodologies.

**38.** The requested extension permits Plaintiff to file motions for temporary restraining order and emergency protective relief addressing both retaliation threats and the work product violation before service triggers additional reactive measures. This sequencing serves judicial economy by presenting integrated filings addressing the merits,

1 necessary protective relief, and the extraordinary work product capture requiring  
2 immediate Court attention.

3 **E. Pro Se Status by Documented Necessity**

4 **39.** Plaintiff proceeds *pro se* not by preference but by documented necessity after  
5 exhausting available avenues for representation and assistance. *Kirchner Decl.* ¶¶ 19-  
6 28.

7 **40. Counsel Withdrawal:** Intellectual property counsel withdrew immediately after  
8 Plaintiff disclosed evidence of government involvement—not after reviewing  
9 complexity or assessing resources, but specifically after learning of governmental  
10 defendant involvement. *Kirchner Decl.* ¶¶ 19-22.

11 **41. Civil Rights Organizations:** Every major civil rights organization contacted failed  
12 to respond except EFF, which stated the matter was "beyond their capabilities" despite  
13 the technical analysis falling squarely within EFF's documented expertise. *Kirchner*  
14 *Decl.* ¶¶ 23-24.

15 **42. Forensic Experts:** Dozens of forensic experts declined despite \$5,000-\$10,000  
16 offers for analysis of completed work, citing either Plaintiff's unrepresented status or  
17 work being "beyond their capabilities." *Kirchner Decl.* ¶¶ 25-27.

18 **43. Congressional and Whistleblower Contacts:** Approximately 50 Congressional  
19 contact forms and dozens of whistleblower organization contacts produced no  
20 response. *Kirchner Decl.* ¶ 28.

21 **44.** The uniformity of non-response across categories—counsel, civil rights  
22 organizations, forensic experts, Congress, whistleblower agencies—demonstrates the  
23 coordination's reach extends beyond direct targeting to systematic isolation of Plaintiff

1 from potential advocates. *Kirchner Decl.* ¶ 28. This circumstance weighs heavily in  
2 favor of extension, as Plaintiff bears the full burden of comprehensive litigation against  
3 multiple sophisticated defendants while simultaneously defending against defendants'  
4 surveillance of his litigation materials.

#### 5 **F. Holiday Period Practical Constraints**

6 **45.** The current service deadline of December 29, 2025 falls during the holiday period  
7 when court operations are limited, process server availability is reduced, defendants'  
8 counsel availability is uncertain, and governmental defendants' offices operate with  
9 reduced staffing.

10 **46.** This litigation involves multiple defendants spanning individual governmental  
11 officials (personal and official capacity), the United States House of Representatives as  
12 an institution, corporate defendants Anthropic and OpenAI, and telecommunications  
13 defendant Comcast. Coordinated service across these different entity types and  
14 jurisdictions requires normal business operations.

15 **47.** The requested 21-day extension to January 19, 2026 permits service during normal  
16 business operations when all parties can properly receive and respond to service, while  
17 allowing Plaintiff to complete the Second Amended Complaint incorporating the  
18 extraordinary December 23 discoveries.

#### 19 **G. Length of Delay is Minimal**

20 **48.** Plaintiff seeks only a 21-day extension. The deadline has not yet passed—this  
21 motion is filed six days before the December 29, 2025 deadline, demonstrating  
22 diligence. The underlying claims relate to conduct spanning 2023-2025; a brief

1 extension to incorporate December discoveries does not materially affect the litigation  
2 timeline.

### 3 **H. No Prejudice to Defendants**

4 **49.** Defendants will suffer no prejudice from the requested 21-day extension. A brief  
5 extension for proper amendment and service does not affect defendants' ability to  
6 respond on the merits.

7 **50.** Plaintiff has demonstrated good faith prosecution through extensive substantive  
8 filings documenting violations with specificity, including the original complaint, First  
9 Amended Complaint, and multiple supporting memoranda and appendices—the very  
10 materials defendants captured through surveillance. *Kirchner Decl.* ¶¶ 87-96.

11 **51.** The requested extension serves judicial economy by permitting Plaintiff to file a  
12 comprehensive Second Amended Complaint incorporating all October-December  
13 discoveries, accompanied by motions for temporary restraining order and emergency  
14 protective relief, enabling the Court to address integrated filings rather than piecemeal  
15 amendments.

### 16 **V. CONCLUSION**

17 **52.** For the foregoing reasons, good cause exists under Federal Rules of Civil  
18 Procedure 4(m) and 6(b)(1)(A) for a 21-day extension of time to effect service of  
19 process.

20 **53.** The December 23, 2025 discovery that defendants captured Plaintiff's complete  
21 litigation work product (565 files, 19 MB) during active litigation—combined with  
22 third-party surveillance establishing reconnaissance-to-attack pipeline with  
23 mathematical correlation probability  $P < 10^{-80}$ , governmental AI-assisted targeting

1 infrastructure, empirical validation establishing concrete commercial value, and  
2 documented retaliation threats—constitutes extraordinary changed circumstances  
3 requiring amendment and protective relief before service.

4 **54.** Plaintiff respectfully requests this Court grant the requested extension from  
5 December 29, 2025 to January 19, 2026, permitting Plaintiff to: (a) complete  
6 amendments incorporating extraordinary December discoveries; (b) file motions for  
7 temporary restraining order and emergency protective relief; and (c) effect proper  
8 service when normal business operations resume.

9  
10 **NOTE TO THE COURT REGARDING EMERGENCY MATTERS:** The  
11 December 23, 2025 discovery that defendants captured Plaintiff's complete litigation  
12 work product (565 files, 19 MB) during active litigation may warrant the Court's  
13 immediate attention. Plaintiff will file comprehensive motions addressing emergency  
14 protective relief contemporaneously with the Second Amended Complaint, including  
15 requests for:

16 **(a)** Preservation order ensuring captured materials are not reviewed by opposing  
17 counsel or used in litigation strategy;

18 **(b)** Show cause order requiring defendants to demonstrate what content was  
19 transmitted, accessed, and by whom;

20 **(c)** Forensic inspection of defendants' servers under Fed. R. Civ. P. 34(a)(1)(A);

21 **(d)** Protective order under Fed. R. Civ. P. 26(c) prohibiting use of knowledge derived  
22 from captured materials; and

1 (e) Consideration of sanctions under the Court's inherent authority or Fed. R. Civ. P.  
2 11, or disqualification of opposing counsel if review occurred.

3 The preservation language included in the proposed order below ensures critical  
4 evidence is protected pending resolution of these motions.

5 **NOTE TO THE COURT:** Plaintiff respectfully submits that the attached proposed  
6 order may be adopted if the Court finds the motion well-taken. Plaintiff has provided a  
7 streamlined order granting the requested relief while preserving critical evidence  
8 detailed in the accompanying Declaration.

9  
10  
11 **Respectfully submitted,**

12 

13 **JOSEPH KIRCHNER**

14 *Pro Se Plaintiff*

15 4440 Parklawn Avenue

16 Edina, MN 55435

17 Tel: (612) 552-2122

18 Email: legal@lawsofexistence.com

19 **Dated:** December 24, 2025  
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1                    **PROPOSED ORDER GRANTING EXTENSION OF TIME TO EFFECT**  
2                                            **SERVICE**

3  
4            Upon consideration of Plaintiff's Motion for Extension of Time to Effect Service of  
5            Process, the accompanying Declaration of Joseph Kirchner, and good cause appearing,  
6            it is hereby:

7            **ORDERED** that Plaintiff's Motion for Extension of Time to Effect Service of Process  
8            is **GRANTED**; and it is further

9            **ORDERED** that the deadline for Plaintiff to effect service of process on all Defendants  
10           is extended from December 29, 2025 to **January 19, 2026**; and it is further

11           **ORDERED** that Plaintiff shall file any amended complaint and related motions on or  
12           before **January 15, 2026**; and it is further

13           **ORDERED** that upon filing of Second Amended Complaint, the Clerk shall issue  
14           summons for all named defendants and Plaintiff shall effect service in accordance with  
15           Federal Rules of Civil Procedure 4(e), 4(i), and 4(j) as applicable to each defendant  
16           category; and it is further

17           **ORDERED** that Defendant Anthropic PBC shall preserve all materials referenced in  
18           Plaintiff's Declaration at ¶¶ 87-96 as captured through Claude Code during December  
19           19-20, 2025, pending resolution of any forthcoming motion for protective relief,  
20           including without limitation: all file content successfully transmitted to Anthropic  
21           servers; all access logs showing when captured materials were accessed and by whom;  
22           all communications regarding or referencing captured litigation materials; and all work  
23           product, strategy documents, or litigation preparation materials that may have  
24           incorporated knowledge derived from captured materials.

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**SO ORDERED** this \_\_\_\_\_ day of \_\_\_\_\_, 2025.

\_\_\_\_\_

HONORABLE ANA C. REYES

United States District Judge

## ATTACHMENTS

### Exhibits

- **Exhibit C-8:** Anthropics Unpublished System Prompt Update October 31, 2025
- **Exhibit C-18:** Verbatim Copyright Infringement Documentation
- **Exhibit N-13:** DOJ-Bondi Leaked Targeting Memo Drafted using Claude and Forensic Analysis
- **Exhibit N-13-H:** Bondi Memo Source Document (PDF)
- **Exhibit N-15:** Blocked Surveillance Transmission Evidence
- **Exhibit N-15-A:** Proprietary Source Code Exfiltration Inventory
- **Exhibit N-15-B:** Third-Party Transmission Forensic Report
- **Exhibit N-15-E:** Hash Manifest
- **Exhibit N-15-F:** Source Code Capture Verification
- **Exhibit N-16:** Undisclosed Third-Party Data Recipients
- **Exhibit N-17:** Persistent Device Fingerprinting Evidence
- **Exhibit N-17-A:** Reconnaissance-to-Attack Correlation Analysis
- **Exhibit N-23:** Multi-Layer Surveillance Architecture
- **Exhibit N-24:** Settings Bypass and Collection Confirmation
- **Exhibit N-25:** Covert Source Code Capture Infrastructure
- **Exhibit N-26:** Personal Data Collection Analysis
- **Exhibit N-28:** False Origin Labeling Deception
- **Exhibit N-29:** Cross-Platform Surveillance Analysis
- **Exhibit N-31:** Native Module Surveillance Infrastructure
- **Exhibit N-33:** Five-Stage Covert Exfiltration Architecture
- **Exhibit N-34:** Behavioral Manipulation Patterns
- **Exhibit N-35:** Surveillance Retention Beyond Functional Need
- **Exhibit N-36:** Privileged Litigation Documents Captured
- **Exhibit N-37:** Claude Desktop Application Forensic Analysis (v1.0.734)
- **Exhibit N-38:** Claude Browser Analytics Privacy Report

### Memos

- **MEMO C:** Constitutional Violation of Article I Section 8 and Comprehensive Fair Use Defense Failure

### Appendices

- **Appendix G:** Comcast Router Forensic Analysis
- **Appendix H:** Application-Layer Interference Evidence and Technical Analysis
- **Appendix I:** Network Forensics and Mathematical Proof of Coordinated AI Platform Targeting